

Case

Title / Nature of Case

2:00 PM

LINE: 1

23-CIV-05908

**IN THE MATTER OF THE ASSUMPTION OF JURISDICTION OVER LAW RATICE OF ARNOLD
MARCUS WOODS, STATE BAR MEMBERSHIP # 183638**

MURRAY WOODS

BRADLEY J EPSTEIN

**PETITIONERS' MURRAY WOODS AND JANICE BUTLER'S MOTION FOR ORDER CEASING LAW PRACTICE AND THE
COURT'S JURISDICTION OVER THE LAW PRACTICE**

TENTATIVE RULING:

PARTIES TO APPEAR.

2:00 PM

LINE: 2

24-CIV-03510

ERIK DAVIS VS. ESTELLA WEEMS, ET AL

ERIK DAVIS
ESTELLA WEEMS

ROBERT G MACK
JASON P TORTORICI

NUNILA ACIO'S MOTION FOR APPOINTMENT OF GUARDIAN AD LITEM

TENTATIVE RULING:

For the reasons stated below, Janet Acio's motion to appoint a guardian ad litem for Nunila Acio is **GRANTED**, subject to the disclosure and undertaking stated below. The competing motion by Estella Weems and The Weems-Young Group, Inc. to appoint an independent guardian ad litem is **DENIED WITHOUT PREJUDICE** to a properly supported application based on a demonstrated conflict or later change of circumstances. Janet Acio is appointed guardian ad litem for Nunila Acio in her individual capacity in this action; Janet's separate status as trustee or litigant does not, by itself, confer authority to represent Nunila individually.

FINDINGS

The declarations from treating physicians, summarized in the moving papers, establish Nunila's present lack of capacity to conduct this litigation. An adult lacking legal capacity must appear through a duly authorized representative, including a court-appointed guardian ad litem. (Code Civ. Proc., §§ 372, subd. (a)(1), 373, subd. (c).) The guardian may be appointed "upon the application of a relative or friend of the person lacking legal competence to make decisions, or of any other party to the action or proceeding, or by the court on its own motion." (*Id.*, at § 373, subd. (c).)

Nunila's November 11, 2024 durable power of attorney appoints Janet and another family member as attorneys-in-fact. Such a designation supports a rebuttable presumption in favor of the nominee's appointment as guardian ad litem; it does not constitute appointment by itself. (*In re Marriage of Caballero* (1994) 27 Cal.App.4th 1139, 1151–1152.)

POTENTIAL CONFLICTS

The opposing parties identify Janet's relationship to an adverse party, her role as trustee and remainder beneficiary, and the possibility of claims concerning trust administration. The Court does not dismiss those matters categorically; rather, on the evidence presently summarized, no concrete, nonwaivable divergence between Nunila's individual interests and Janet's interests has been established that rebuts the presumption. Allegations of fraud or coercion in execution of the power of attorney remain speculative on this record. Janet shall promptly disclose on the record any actual or potential conflict, her relationships with other parties, her trust interests, and any material claim that Nunila may have against Janet or the trust. (Code Civ. Proc., § 372,